

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON
PLAINTIFF

V

STATE OF MISSISSIPPI
DEFENDANT

CAUSE NO. L20-316

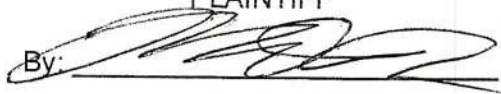
Motion for Recusal

Comes now MATTHEW REARDON, PLAINTIFF in the above-captioned cause, and respectfully moves that the Circuit Court Judge KELLY LUTHER recuse himself from this case on the following grounds:

CONFLICT OF INTEREST DUE TO BEING INFORMED OF ALL FRAUDULENT ACTIVITY CONDUCTED BY LAFAYETTE COUNTY, MS AND STATE OF MISSISSIPPI ON MONDAY JUNE 1ST, 2020 VIA EMAIL TO COURT ADMINISTRATOR KATHY STURDIVANT WHO IN TURN FORWARDED DETAILED EMAILS TO JUDGE KELLY LUTHER. PLAINTIFF WAS PASSED ADVICE BY JUDGE VIA COURT ADMINISTRATOR THAT HE WOULD NEED TO SEEK RELIEF VIA POST CONVICTION RELIEF IN ORDER TO HAVE SAID ISSUES HEARD AND ADDRESSED BY COURT. ON JULY 7, 2020 PETITIONER SUBMITTED POST CONVICTION RELIEF TO TRIAL COURT ASKING FOR RELIEF FROM THE COURT. JUDGE KELLY LUTHER PREJUDICIALLY DENIED MOTION WITHOUT EVEN ALLOWING AN EVIDENTIARY HEARING TO PRESENT FINDINGS OF EVIDENCE AND PROOF. IT IS THIS REASON ALONG WITH PETITIONER'S CASE BEING ASSIGNED TO JUDGE KENT SMITH THAT PETITIONER REQUEST IMMEDIATE, EMERGENCY RELIEF FROM THIS TRIAL COURT, AND PETITIONER FORMALLY ASKS FOR A WRITTEN RESPONSE FROM THIS COURT AS TO WHY JUDGE KELLY LUTHER IS DECIDING CASES FOR JUDGE KENT SMITH WITHOUT HOLDING SO MUCH AS AN EVIDENTIARY HEARING TO EXAMINE CLAIMS OF FRAUD COMMITTED ALONG WITH THE CONSTITUTIONAL RIGHTS OF PETITIONER BEING OUTRIGHT DESTROYED BY STATE AND COUNTY OFFICIALS IN AN OUTRAGEOUS ATTEMPT TO COERCE A FAVORED OUTCOME AND COVER IT UP, WHICH IT ULTIMATELY WOUND UP DOING. EVIDENCE OF EMAIL CORRESPONDENCE PASSED ALONG TO JUDGE LUTHER IS ATTACHED HERETO AS EXHIBIT A.

Respectfully submitted,

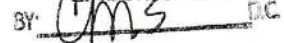
MATTHEW O. REARDON
PLAINTIFF

By: 

LAFAYETTE COUNTY
FILED

AUG 12 2020

JEFF BUSBY
CIRCUIT CLERK

BY:  DC